

HEADNOTE

“The request to amend a patent must refer to claims that have been challenged and, therefore, it is inadmissible to the extent that it concerns unchallenged claims.”

COURT

Central Division in Paris

PATENT

EP 3 414 708

KEYWORDS

Request to amend the patent

PROCEEDINGS

Action for revocation

Adaptive sensor sampling of a cold
chain distribution system

unchallenged claims

SUMMARY

The Central Division in Paris ruled on an action for revocation. The patent at issue relates to adaptive sensor sampling of a cold chain distribution system. According to the headnotes of the decision, a party seeking to amend a patent may only modify claims that have been subject to challenge, making any amendment to unchallenged claims procedurally inadmissible.